

STATE OF NEW YORK

8736--A

2025-2026 Regular Sessions

IN ASSEMBLY

June 2, 2025

Introduced by M. of A. DILAN -- read once and referred to the Committee on Correction -- recommitted to the Committee on Correction in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the correction law, in relation to requirements for vendors who make products available for order and delivery to incarcerated individuals and provide for safe food storage in correctional facilities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 112 of the correction law is amended by adding a new subdivision 8 to read as follows:

8. (a) The commissioner shall promulgate rules and regulations requiring every vendor which contracts with the department to provide ordering and delivery of products to incarcerated individuals housed at correctional facilities to:

(i) verify with the department that all items available for purchase on behalf of an incarcerated individual are in full compliance with all applicable rules, regulations and directives;

(ii) coordinate with the department to track the number, content and weight of orders shipped to an incarcerated individual and notify a purchaser if an order would exceed a limit for such incarcerated individual and include information on what modifications, if any, to the order would make it compliant with applicable restrictions;

(iii) have a system for notifying purchasers when all or part of an order has been rejected by a correctional facility and provide a full or partial refund to the purchaser as applicable; and

(iv) conspicuously label packages with perishable food items in a form and manner as determined by the department to facilitate the timely processing of such packages by a correctional facility.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (b) The commissioner shall require all correctional facilities to:

2 (i) process all packages with perishable food items labeled pursuant
3 to subparagraph (iv) of paragraph (b) of this subdivision within twen-
4 ty-four hours of receipt of such package; and

5 (ii) provide for the safe storage of perishable food items received by
6 an incarcerated individual within the cell of such incarcerated individ-
7 ual.

8 § 2. This act shall take effect on the one hundred eightieth day after
9 it shall have become a law. Effective immediately, the addition, amend-
10 ment and/or repeal of any rule or regulation necessary for the implemen-
11 tation of this act on its effective date are authorized to be made and
12 completed on or before such effective date.